

25STCV38426 25STCV38426

County: los-angeles

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Case Number: 25STCV38426 Hearing Date: July 6, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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ERICK GARCIA MIRELES,

Plaintiff(s),

vs.

GENERAL MOTORS LLC, et al.,

Defendant(s).

Case No.:

25STCV38426

Hearing Date:

July 6, 2026

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

I. BACKGROUND

On December 31, 2025, Plaintiff Erick Garcia Mireles ("Plaintiff") filed a Complaint against Defendants General Motors LLC and Does 1 through 10, inclusive ("Defendants") alleging causes of action for (1) Breach of Implied Warranty of Merchantability Cal. Civ. Code §1794; (2) Breach of Implied Warranty of Fitness Cal. Civ. Code §1794; (3) Breach of Express Warranty Cal. Civ. Code §1794; (4) Failure to Promptly Repurchase Product Cal. Civ. Code §1793.2(d); (5) Failure to Commence Repairs within a Reasonable Time and to Complete them Within 30 Days Cal. Civ. Code §1794; and (6) Violation of Magnuson-Moss Warranty Act. On May 27, 2026, Notice of Settlement of Entire Case was filed.

On June 4, 2026, Plaintiff filed this Motion for Attorney's Fees, Costs, and Expenses. On June 11, 2026, Plaintiff filed an Amended Motion for Attorney's Fees, Costs, and Expenses ("Motion"). On June 22, 2026, Defendant filed an opposition. On June 25, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).)

Civil Code section 17941 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (§ 1794.)

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Ibid.*)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford v. Bd. of Trustees of California State Univ.* (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*)

III. DISCUSSION

Plaintiffs move for an award of attorney fees and costs in the total amount of \$29,013.30, consisting of (1) \$18,566 in attorney's fees, (2) a lodestar enhancement of 1.5 in the amount of \$9,416.50 for attorney's fees of \$27,982.50, and (3)

\$1,030.80 in costs and expenses.

Entitlement to Attorney's Fees

It is undisputed that Plaintiff is the prevailing party in this action, and is therefore entitled to attorney fees, costs, and expenses pursuant to section 1794(d).

Reasonableness of Fees

Reasonable Hourly Rate

"The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler, (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in [her] court." (Ibid.)

Plaintiff seeks to recover attorney's fees for attorney Atam Rostomyan ("Rostomyan"). Rostomyan's rate is \$650 per hour. (Rostomyan Decl., ¶ 17.) Rostomyan's rate is reasonable given his experience, education, skill, and the prevailing market rates in Los Angeles County. (Id. at ¶ 17-24.) Rostomyan attests to being an attorney since 2014 (about 12 years of experience) with substantial litigation experience. (Id. at ¶ 18.) Rostomyan also attests to practicing at his own firm, Rostomyan Law, PC which focuses on Song-Beverly Consumer Warranty Act claims and employment actions. (Id. at ¶ 19.) Additionally, Rostomyan attests to successfully handling hundreds, if not thousands, of lemon law cases within the last 8 years. (Id. at ¶ 22.)

Defendants argue the hourly rate exceeds the market rate for lemon law actions, which is \$350.00. Defendants seek to reduce Rostomyan's rate to reflect the 2021 Real Rate Report. Defendants contend that the First Quartile rate for general liability in Los Angeles is \$304 for partners and the First Quartile rate for firms with less than 50 attorneys or less is \$200 for partners. Accordingly, the rates should be average for a reasonable rate of \$252 for partners. (MAR Decl., ¶ 12.)

Based on this Court's experience in approving legal rates for lemon law actions, Rostomyan's rate of \$650.00 per hour for around 12 years of experience as an attorney and 8 years of lemon law experience is on the high end. For example, the Court has previously approved rates of \$650 for attorneys with twenty or more years of experience. The Court has approved rates ranging between \$350.00 to \$385.00 for attorneys with over five years of experience in lemon law. Thus, the Court finds Rostomyan has not justified the rate of \$650.00 per hour and will therefore reduce the rate to \$385.00 per hour.

Reasonable Hours Incurred

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.'" (Christian Research Institute v. Alnor, (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (Wilkerson v. Sullivan, (2002) 99 Cal.App.4th 443, 448.) A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections. (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 101.)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel, (1985) 167 Cal.App.3d 677, 682.) Plaintiff included his hourly billing with this Motion. (Rostomyan Decl., ¶ 7 [Exh. B].) Plaintiff seeks to recover attorney's fees for 28.7 hours. (Ibid.) Rostomyan contends he did

not bill for clerical tasks. (Id. at ¶ 10.)

In opposition, Defendants contend that fees such as scheduling mediation are administrative tasks that should not be billed for. Additionally, entries such as received and reviewed fully executed retainer agreement, informed the client regarding mediation date and mediation, received and reviewed the court's minute order are routine tasks that should not be paid at a premium rate. Furthermore, Defendants contend that Lemon Law litigators rely on boilerplate templates and the use of block billing for preparation of pleadings should be reduced. Given Rostomyan's experience, these tasks should not have taken as long.

§ The Court finds no basis to strike these bills or reduce specific entries Defendants argue could have been billed at a lower rate, especially as the Court has already reduced the attorney billing rate. The Court does not find that the 15 minutes spent scheduling mediation with the mediator was an administrative task to be removed.

Accordingly, Plaintiff's 28.7 hours is not reduced.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award" and (4) the success achieved. (Serrano v. Priest, (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses, (2001) 24 Cal.4th 1122, 1138-1139.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (Id. at 1139.)

Plaintiffs request a lodestar multiplier enhancement of 1.5. The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. Nothing before the Court indicates that the case presented novel issues or that the quality of representation far exceeded the quality of representation that would have been provided by attorneys of comparable skill and experience billing at the same rates. Further, in terms of the contingency basis, the Court finds that such consideration and risk is already included within the lodestar amount.

Accordingly, the Court declines to award a lodestar multiplier

Costs

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute "may be allowed or denied in the court's discretion." (Id., subd. (c)(4).) The Beverly-Song Act allows a successful plaintiff to recover both "costs" and "expenses." (§ 1794, subd. (d).)

"If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party]." [Citation.] (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

Plaintiff requests a total of \$1,030.80 in costs and expenses. The cost items appear to be proper, and there was no opposition challenging any particular cost. Therefore, the Court awards Plaintiff the requested amount without any reductions.

IV. CONCLUSION

Based on the foregoing, Plaintiff's motion for attorney's fees is GRANTED IN PART. The Court awards Atam Rostomyan \$11,049.50 in attorney's fees and \$1,030.80 in costs.

Moving Party is ordered to give notice.

DATED: July 6, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.